

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday September 16, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
2:00PM LINE 1	
22-CIV-04675	ANTHONY FREEMAN VS. SHELLPOINT MORTGAGE SERVICING
ANTHONY FREEMAN SHELLPOINT MORTGAGE SERVICING	DAVID A. BUTLER JONATHAN C. CAHILL

Defendant's Demurrer to Second Amended Complaint

TENTATIVE RULING:

Defendant's Demurrer is **SUSTAINED without leave to amend**. Defendant's Request for Judicial Notice is **GRANTED**.

This is plaintiff's third complaint in this action, which was filed nearly four years ago, on November 8, 2022. No bright-line rule exists regarding how many opportunities a party must be given to amend a complaint. (But see Code Civ. Proc., § 430.41, subd. (e)(1).) Although leave to amend is liberally allowed, such leave should not be granted where, in all probability, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes Corp. v. GL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687 (*A.J. Fistes*).)

If plaintiff seeks leave to amend, he should properly contest the tentative ruling and appear at the hearing (in person or via Zoom) to state facts that provide a reasonable possibility that he can state a cause of action as to the violations alleged.

A. Background

The Second Amended Complaint (SAC) defines as "the subject real property" realty located at 17 W. 6th Street, Stockton, CA 95206 (the Property). (SAC, ¶ 2.) On September 5, 2019, plaintiff allegedly gave a promissory note (the Note) in the amount of \$147,000.00 secured by a deed of trust on the Property to PS Funding, Inc., which Note and deed of trust were signed in San Mateo County, and which plaintiff collectively terms the "Loan." (*Id.*, ¶ 3.) Plaintiff alleges that defendant is the current servicer of the Loan. (*Id.*, ¶ 4.) Defendant shows the Loan to have been paid in full and the interest held by the deed of trust reconveyed in June 2022. (Defendant's RJN, exh. 2.)

This court sustained defendant's demurrer to the First Amended Complaint because "Plaintiff's additional causes of action rely on the apparently time-barred allegation of the CCRAA, or else are so uncertain that it cannot be ascertained what is being alleged." (Order, filed April 15, 2026, exh. A, at p. 3:13-16.)

Defendant now demurs to the SAC and to each of its causes of action, asking that leave to amend be denied.

B. Legal Standards for Demurrer

“[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation].” (*John’s Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John’s Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John’s Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not “assume the truth of contentions, deductions or conclusions of law.” (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a “demurrer must dispose of an entire cause of action.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

“[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Aubry, supra*, 2 Cal.4th at p. 967.) Leave to amend should not be granted where, in all probability, amendment would be futile. (*Foroudi, supra*, 57 Cal.App.5th at p. 1001.) The party seeking leave to amend has the burden of demonstrating the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes, supra*, 38 Cal.App.5th at p. 687.)

C. The Demurrer is Sustained Without Leave to Amend

Defendant asserts that the sole factual basis of the SAC is its allegation that defendant furnished inaccurate information to the credit-reporting agencies, Experian, Transunion, and Equifax, on or about November 8, 2019, citing paragraph 10 of the FAC. The SAC alleges that this inaccurate disclosure occurred on or about December 15, 2020. (See SAC ¶¶ 11, 13.) Defendant urges that the change in the alleged date of the reporting should be treated as a sham pleading.

The SAC also alleges that “[o]n or about December 18, 2020, Plaintiff and Defendant entered into credit transaction” in the amount of \$145,000 secured by the Property. (*Id.*, ¶ 19; *see also id.*, ¶ 31.) The SAC further alleges that “The transaction was consummated on or about [date].” (*Id.*, ¶ 20 [note that this is the second paragraph numbered “20.”]) Thus, the SAC contradicts itself as well as the FAC with respect to the alleged date of the credit transaction, as well as the allegedly inaccurate reporting. Moreover, defendant notes that the SAC now alleges that “Defendant prepared and furnished a consumer credit report concerning Plaintiff that

contained inaccurate information regarding the timeliness of *defendant's* payments.” (SAC, ¶ 11, italics added; see also Opp., at p. 5:15.)

Plaintiff's allegations in the SAC are further internally inconsistent as to when credit was extended and when the defendant allegedly misreported plaintiff's payment history to the credit reporting agencies, and significantly, whether the Property was plaintiff's residence. See, e.g., SAC, ¶ 1 [“At all relevant times herein, the Plaintiff has resided in the City of El Sobrante, County of Contra Costa, State of California”]; *id.*, ¶ 11 [on December 15, 2020, defendant “prepared and furnished a consumer credit report concerning Plaintiff that contained inaccurate information regarding the timeliness of defendant's payments” to some unspecified person or entity]; *id.*, ¶ 19 [on or about December 18, 2020, plaintiff and defendant entered into a credit transaction secured by “Plaintiff's principal dwelling located at 17 West 6th St., Stockton, CA, San Joaquin County]; *id.*, ¶ 48 [“On or about December 2020 Plaintiff obtained a mortgage loan from Shellpoint in the amount of \$145,000.00 secured by real property located at 17 West 6th St., Stockton, CA San Joaquin County, which never became plaintiff's principal residence.”]. At best, the complaint is uncertain.

The third cause of action of the SAC further alleges that on or about December 30, 2020, defendant charged plaintiff fees for servicing plaintiff's mortgage on the Property, and that conduct relating to this loan is also alleged as a basis for plaintiff's claims. In the fourth cause of action, plaintiff alleges that he fell behind on that mortgage and was at risk of foreclosure (SAC, ¶ 50), and lost both the property and equity in the property. (*Id.*, ¶ 59).

Defendant generally argues that plaintiff should plead more facts, and plaintiff counters that defendant improperly seeks to resolve factual disputes at the pleading stage such as whether the Loan falls under TILA or whether RESPA applies. Defendant persuasively argues that information necessary to plead the asserted causes of action is missing from the SAC, so that defendant must guess which violations actually are alleged.

In his Opposition, plaintiff asserts that the SAC somehow also concerns “509 Rincon Rd., El Sobrante CA, occupied by the plaintiff per the note agreement Section one of Exhibit 1.” (Opp., at p. 1:25-26.) The SAC contains no such allegation, and an opposition cannot amend or modify a complaint. “Matters outside the complaint must be left for a determination at trial.” (*Noguera v. North Monterey County Unified School District* (1980) 106 Cal.App.3d, 64, 65.)

The Opposition inaccurately states that the SAC alleges that the Note was “secured by a deed of trust on property located at 17 West 6th Street, Stockton, California and 509 Rincon Rd El Sobrante CA.” (Opp., at p. 2:17-19, emphasis in original.) The SAC does not only not allege that the Note was not secured by a deed of trust on the El Sobrante property, both the deed of trust and its full reconveyance (defendant's RJN, exhs. 1 & 2) refer only to the San Joaquin Property. The former, moreover, shows only the Property in the Legal Description (*id.*, exh. 1, at p. 18) and in its footers. (*Id.*, at pp. 6-19.) Further, although the Opposition refers to a “Construction Loan Agreement” as its Exhibit 1, it is not recorded, and it does not specify the El Sobrante realty. (Opp., exh. 1.)

In the second cause of action, the SAC alleges that plaintiff discovered the violation of the disclosure requirements of the TILA and the right to rescind the loan transaction in August 2021 (SAC, ¶ 24), which date plaintiff argues triggers the two-year statute of limitations for the first cause of action. The Opposition seems to add that defendant has continued knowingly to make false reports that the Loan on the Property was in foreclosure or foreclosed. “Fresh new violation while claiming time barred.” (Opp., at p. 5:10; *see also id.*, at p. 5:4-10.) Not only is this contention regarding more recent allegations not alleged in the SAC (which appears to focus on false reports before filing a notice of default [*see, e.g.*, SAC, ¶¶ 53-54]), this argument does not discuss any misreporting of a foreclosure at the El Sobrante address, despite the earlier assertion in the Opposition discussed above.

Arguing as to the second cause of action, plaintiff asserts that defendant characterizes the Loan as a construction loan so that TILA does not apply, claiming that the “SAC alleges the transaction involved Plaintiffs principal dwelling.” (Opp., at p. 6:16-17.) In fact, the SAC alleges the opposite, that the Property (at 17 W. 6th St., Stockton, CA, in San Joaquin County) “never became plaintiff’s principal residence.” (*Id.*, ¶ 48.) Indeed, the SAC alleges that “At all relevant times herein, the Plaintiff has resided in the City of El Sobrante, County of Contra Costa, State of California.” (SAC, ¶ 1.) Plaintiff adds more unclear assertions, and then argues inconsistently with the SAC that, “The note agreement specifies they put additional lien against 509 Rincon Rd El Sobrante CA 94803 which is undisputed personal residence.” (Opp., at p. 6:27-28.)

As to the third cause of action, plaintiff appears to argue that defendant asserts that the RESPA does not apply because the Loan is a construction loan rather than a consumer loan, but defendant treated it as a consumer loan, and whether it falls within the scope of RESPA is a factual question. However, plaintiff appears to be discussing a loan concerning realty other than the Property that is the subject of the SAC. (*Compare* SAC, ¶ 2 [identifying the Property], *with* Opp. at p. 7:24-25 [“Construction loan agreement specified lien against owner occupied property at 509 Rincon Rd El Sobrante CA 9403 making this RESPA valid loan.”].) Plaintiff further confusingly and inconsistently argues that, “The SAC alleges the violations occurred on or about December 30, 2020. This action was filed on November 8, 2022 *within the one-year statute of limitations* for section 2607 claims if the violation occurred in December 2020.” (Opp., at p. 8:27-9:2, *emphasis added.*)

As to the fourth cause of action, plaintiff asserts that the court may not take judicial notice of disputed facts, that defendant tries to use judicially noticed documents “to establish that the loan is a construction loan, that it was originated by PS Funding, and that it was paid in full and released,” and that these factual assertions contradict or exceed the scope of the SAC and may not be used to resolve factual disputes on demurrer. (Opp., at p. 10:16-18.) However, as discussed below, the court may take judicial notice of legally operative language as long as the authenticity of the document is not disputed, even if it may not take judicial notice of disputed facts therein.

Moreover, while plaintiff asserts that whether the Loan was for residential or business purposes is a factual dispute inappropriate to resolution on demurrer, Exhibit 1 to his Opposition

states that: “You hereby confirm your representation to us that no loans under this Agreement are intended to be used or shall be used for anything other than business and/or commercial (non-consumer) purposes).” (Opp., at p. 25; exh. 1, ¶ 24.) Exhibit 1 to the Opposition defeats plaintiff’s arguments. That is, Exhibit 1 titled, “Construction Loan Agreement” and subtitled “PROPERTY ADDRESS: 17 West 6th Street, Stockton, CA 95206” (Opp., exh. 1, at p. 14), shows that the Loan is a commercial loan, and that it identifies the legal description only of the Property. (*Id.*, exh. 1, at pp. 28-30.)

In sum, the SAC does not state any viable causes of action, and the demurrer is **SUSTAINED without leave to amend.**

D. Defendant’s Request for Judicial Notice

Defendant’s Request for Judicial Notice (RJN) is **GRANTED.** (Evid. Code, § 452, subds. (c) & (h), & § 453). However, judicial notice of these documents is limited to the “fact of a document’s recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document’s legally operative language, assuming there is no genuine dispute regarding the document’s authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.” (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265, citations omitted and disapproved on other grounds by *Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.4th 919.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 2

23-CIV-00194

THOMAS BRYCE, M.D., PH.D VS ROY VAID, M.D.

THOMAS BRYCE, M.D.
ROY VAID, M.D., PH.D.

RICHARD E. MUNZINGER
MARCO QUAZZO

Petitioner's Motion for Leave to Amend the Complaint

TENTATIVE RULING:

Plaintiff Thomas Bryce's Motion for Leave to Amend the Complaint is **GRANTED, in part**. Plaintiff's Request for Judicial Notice is **GRANTED**, but not for the truth of the matters therein.

A. Background

This action for supervision of voluntary dissolution of Quality Nighthawk Teleradiology Group, Inc. (QNH) and damages for breach of fiduciary duty, has been pending for over three years. (Petition for Supervision of Voluntary Dissolution and Complaint, filed on January 13, 2023, ¶ 1.) Plaintiff and defendant Roy Vaid each owned 50% of the shares of QNH, a "teleradiology" business in which the company's radiologists provided radiological review and analysis services remotely for various customer entities.

Vaid argues that Bryce waited two years before commencing meaningful discovery and has delayed three years in seeking to amend his complaint, resulting in an increase in defendant's discovery burden and a delay in trial. Bryce counters that Vaid's bankruptcy filing on behalf of QNH and failure to adequately respond to discovery caused significant delay. On balance, and in light of the strong policy in favor of granting leave to amend, Vaid has not demonstrated a level of prejudice that warrants denying leave, particularly because there is no trial date yet set in this matter.

B. Legal Standard

"[J]udicial policy favors resolution of all disputed matters between the parties in the same lawsuit." (Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (Rutter, June 2026 Update) ¶ 6:638 (Weil & Brown).) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530.)

"Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party will have the opportunity to

attack the validity of the amended pleading.” (Weil & Brown, *supra*, at ¶ 6:644; citing *Kittredge Sports Co. v. Sup Ct.* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.) But, “[t]he judge undoubtedly has discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action or defense.” (Weil & Brown, *supra*, ¶ 6:645.)

C. Discussion

Bryce’s proposed First Amended Complaint (proposed FAC) does the following:

- “adds to the existing Second Cause of Action for breach of fiduciary duty” by “nam[ing] Vaid both directly and derivatively through QNH for his breaches of fiduciary duties owed to QNH and Bryce”;
- “adds an individual Third Cause of Action for Vaid’s breach of fiduciary duty for failure to sell QNH to Experity, Inc. and failure to sell QNH during this dissolution as a going concern” which “names Vaid directly for his breaches of fiduciary duties owed to Bryce individually”;
- “adds a Fourth Cause of Action for unfair business practices” which “names Vaid for unfair business practices both directly and derivatively”;
- “adds a Fifth and Sixth Cause of Action for fraudulent conveyance” which “are brought individually by Bryce against Vaid alleging fraudulent conveyance of properties which has hindered, delayed and defrauded Bryce’s ability to satisfy his claims against Vaid”; and
- “adds a Seventh Cause of Action for indemnification” which is “brought by Bryce individually against QNH.”

(MPA iso Motion, at p. 3:2-15.)

Ordinarily, the two [derivative and direct] actions are mutually exclusive: i.e., the right of action and recovery belongs to either the shareholders (direct action) or the corporation (derivative action). [*Schuster v. Gardner* (2005) 127 CA4th 305, 312, 25 CR3d 468, 473 (quoting prior version of text); see *Bader v. Anderson* (2009) 179 CA4th 775, 793, 101 CR3d 821, 835 (quoting text); *Oakland Raiders v. National Football League* (2005) 131 CA4th 621, 649, 32 CR3d 266, 287, fn. 26 (quoting prior version of text)] [¶] However, the distinction between direct and derivative actions sometimes blurs, especially in corporations with only a few shareholders where the acts of one officer/shareholder directly impact both the corporation and the other shareholders.

(Weil & Brown, Cal. Prac. Guide: Corporations (Rutter, July 2025 Update) ¶ 6:598.1 (Weil & Brown), emphasis removed.)

“Where the duty breached is owed directly to the shareholder as an individual, the shareholder may bring suit and obtain judgment on their own behalf.” (Weil & Brown, ¶ 6:599, emphasis removed.) “A shareholder may bring a derivative suit on the corporation's behalf where management (or any third party) breaches a duty owed to the corporation and the corporation fails to assert its cause of action.” (*Id.*, ¶ 6:602, emphasis removed.) “Thus, an action is ‘derivative’ if ‘the gravamen of the complaint is injury to the corporation, or to the whole body of its stock and property without any severance or distribution among individual holders, or [if] it seeks to recover assets for the corporation or to prevent the dissipation of its assets.’” (*Id.*, ¶ 6:603.)

The direct and derivative claims are pled in the same cause of action (see Proposed FAC, second, fourth, fifth, and sixth causes of action). Because a “demurrer must dispose of an entire cause of action.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119), combining the claims into a single cause of action makes it impossible for defendant to demur to an insufficiently pled direct or derivative claim. Accordingly, as an initial matter, plaintiff is directed to separate the claims into direct and derivative causes of action.

1. Bryce’s Authority to Assert Derivative Claims

Vaid argues that Bryce cannot bring derivative claims, contending that the court-appointed receiver for QNH, Byron Moldo, is the only party that can bring those claims on QNH’s behalf.

On April 9, 2026, the court appointed Mr. Moldo as the receiver for QNH. On April 21, 2026, the court directed plaintiff and defendant to submit their respective demands regarding possible claims on behalf of QNH to Mr. Moldo, so that he could review and prepare a report regarding those claims. On June 30, 2026, Mr. Moldo filed said report and found, in relevant part:

Having investigated the QNH claims as set forth by counsel for Bryce and Vaid in their correspondence, and following discussions with Munzinger and Quazzo, the Receiver recommends that the alleged QNH claims as set forth by Munzinger and Quazzo on behalf of their respective clients be brought derivatively. The Receiver believes that it would not be cost-effective for him to bring these claims on behalf of QNH as he would be required to spend an inordinate amount of time to fully and completely educate himself with the claims. On the other hand, and primarily due to their familiarity with the details and history of this matter, the Receiver believes that Munzinger and Quazzo can much more efficiently initiate and prosecute these derivative claims.

(Second Report of Byron Z. Moldo, Receiver, ¶ 7.) Pursuant to Mr. Moldo’s recommendation, Bryce is authorized to pursue derivative claims on behalf of QNH. (See *Porter v. Sabin* (1893) 149 U.S. 473, 479.)

Plaintiff must first have made an adequate demand on the Receiver. “A shareholder cannot initiate a derivative suit without first informing the directors about the action and making

a reasonable effort to induce them to commence suit themselves or otherwise redress the wrong, unless such efforts would be ‘useless’ or ‘futile’ (Weil & Brown, *supra*, ¶ 6:626 ff.). [Corps.C. § 800(b)(2); *Kanter v. Reed* (2023) 92 CA5th 191, 204, 309 CR3d 375, 383 (discussed at ¶ 6:247); *Schrage v. Schrage* (2021) 69 CA5th 126, 156, 284 CR3d 279, 305, fn. 14 (quoting text); see also Corps.C. § 2900(d)(2) (SPCs)].” (Id. at ¶ 6:622.)

Plaintiff alleges in his proposed FAC that on May 29, 2026, he and Vaid presented their derivative claims to the Receiver, and that on June 30, 2026, the Receiver declined to bring the claims and recommended that the parties bring the derivative claims. (Proposed FAC, ¶¶ 19-20.) The derivative claims have therefore been adequately presented to the Receiver.

It is not the court’s role at this point to determine whether the causes of action are sufficiently pled. Rather, that is a question to be answered on demurrer.

Defendant’s remaining arguments regarding this cause of action fail to demonstrate that the cause of action is futile. The court therefore grants leave to amend the second cause of action — but pled in separate direct and derivative causes of action.

2. The Proposed Amended Causes of Action

Bryce proposes adding the following allegations in support of the second cause of action:

- that plaintiff satisfied the demand requirement to bring derivative claims (Proposed FAC, ¶¶ 14-22);
- that defendant breached his fiduciary duty by soliciting QNH’s clients during the dissolution process, causing lost revenue to QNH (*id.*, ¶¶ 26-30);
- that defendant breached his fiduciary duty by paying himself and his agents unauthorized salaries (*id.*, ¶¶ 31-36);
- that defendant breached his fiduciary duty by filing for bankruptcy despite knowing that he could not act on QNH’s behalf as the sole director, wasting QNH and plaintiff’s funds (*id.*, ¶¶ 37-38);
- Amends the second cause of action to assert both individual and derivative claims, including by adding derivative claims based on the above allegations (*id.*, ¶¶ 51-57)

Plaintiff proposes adding the following allegations in support of the third cause of action:

- Defendant breached his fiduciary duty of loyalty by sabotaging the sale of QNH to Experity (Proposed FAC, ¶¶ 39-43);
- The failure to sell to Experity hurt plaintiff directly but other allegations of fiduciary duty caused direct and derivative harm (*id.*, ¶¶ 44-45);

-
- A direct cause of action for breach of fiduciary duty based on failure to sell QNH to Experity (*id.*, ¶¶ 58-64).

As his fourth cause of action, plaintiff proposes the addition of a direct and derivative claim for unfair business practices pursuant to Business & Professions Code, section 17200, alleging that “Vaid’s conduct and those of this agents as alleged herein is unlawful, unfair, and fraudulent” and “QNH and Bryce are suffering monetary damages and irreparable harm as a direct result of Defendants’ unlawful, unfair and fraudulent conduct.” (Proposed FAC, ¶¶ 65-67.)

Plaintiff proposes adding the following allegations in support of the fifth and sixth causes of action:

- Allegations that defendant fraudulently transferred his assets for little to no consideration in order to defraud plaintiff (proposed FAC, ¶¶ 46-48);
- Addition of individual and derivative cause of action “To Set Aside Fraudulent Transfers – Actual Fraudulent Intent” against Defendant individually and as Co-Trustee of the Chen Vaid Family Trust (*id.*, ¶¶ 68-77);
- Addition of individual and derivative cause of action “To Set Aside Fraudulent Transfers – Without Receipt of Reasonably Equivalent Value” against Defendant individually and as Co-Trustee of the Chen Vaid Family Trust (*id.*, ¶¶ 78-83).

Plaintiff alleges as to the fifth cause of action that plaintiff had claims against defendant and that defendant transferred certain properties that he (defendant) owned into a family trust in order to defraud creditors, including plaintiff. (Proposed FAC, ¶¶ 69-74.) Plaintiff alleges that “[a]s a direct and proximate result of the aforementioned transfers, QNH and Bryce have been hindered, delayed, and defrauded in his ability to satisfy his claim against Vaid out of the Properties, all to QNH’s and Bryce’s damage in an amount to be determined according to proof.” (*Id.*, ¶ 77.) Plaintiff alleges as to the sixth cause of action that defendant made the transfers for little to no value, and that the transfers were made in an attempt to limit defendant’s ability to pay any creditors, including plaintiff and QNH, if found liable. (*Id.*, ¶¶ 80, 82-83.)

Defendant argues that plaintiff has failed to present this claim to the Receiver because the letter sent to the Receiver on May 29, 2026 did not mention defendant’s alleged transfer of real property, or that plaintiff contends the transfer was fraudulent, or that QNH may have a remedy to set aside the transfer pursuant to Civil Code, section 3439.

Corporations Code, section 800 states, in relevant part:

(b) No action may be instituted or maintained in right of any domestic or foreign corporation by any holder of shares or of voting trust certificates of the corporation unless both of the following conditions exist:

* * *

(2) The plaintiff alleges in the complaint with particularity plaintiff's efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file.

Plaintiff argues that he satisfied this provision when he served the Receiver with a copy of the motion now before the court, which attaches the Proposed FAC. Based on the circumstances in this case, including the reasoning in the Receiver's Second Report to the court, plaintiff met the demand requirement for this cause of action in serving the Receiver with a copy of the instant motion.

Defendant also argues that the Uniform Voidable Transfers Act (UVTA), codified at Civ. Code §§ 3439, et seq., does not apply to him because he is a resident of Massachusetts. However, the section of the UVTA that defendant relies on for this argument is the section on "Governing Law," and the UVTA does not state anywhere that it only applies to those within California. (See also *Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362; *Square 1 Bank v. Lo* (N.D. Cal. 2015) 128 F.Supp.3d 1257, 1261; *Gutierrez v. Givens* (S.D. Cal. 1998) 1 F.Supp.2d 1077, 1081.) Again, it is premature for the court to rule on whether the UVTA applies to defendant.

Plaintiff proposes the addition of an individual cause of action for indemnification against QNH for his expenses in bringing the instant proceeding. (Proposed FAC, ¶¶ 84-95.)

3. Addition of Doe Defendants

Plaintiff proposes the addition of ten Doe Defendants, alleging that they "interfered with QNH and its clients, including those in California, and interfered with QNH's dissolution in California. (Proposed FAC, ¶¶ 9, 12.) Defendant argues that plaintiff's attempt to add the Doe defendants is improper because plaintiff's 2025 Proposed Complaint demonstrates that he knew the names of those he now seeks to add as Does. (Opp., at p. 11:8-12.)

"For a defendant to be added as a Doe, at the time of filing the complaint plaintiff not only must have been genuinely ignorant of defendant's identity, but also ignorant of the facts giving rise to the cause of action against that defendant. [*San Diego Navy Broadway Complex Coalition v. California Coastal Comm'n* (2019) 40 CA5th 563, 579, 253 CR3d 314, 328; see ¶ 6:742]." (Weil & Brown, Civ. Proc. Before Trial, *supra*, at ¶ 6:615.4.)

The court requests that plaintiff clarify at the hearing on this motion that he does not know the true names of those he proposes to add as Doe Defendants.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order

repeating verbatim the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 3

23-UDL-00390

ESSEX HILLSDALE GARDEN APARTMENTS, L.P. VS. YOSELIN GARCIA XIQUEIN, ET AL

ESSEX HILLSDALE GARDEN APARTMENTS, L.P.
YOSELIN GARCIA XIQUEIN

VILMA LOPEZ

Plaintiff's Motion to Amend the Judgment

TENTATIVE RULING:

Plaintiff Essex Hillsdale Garden Apartment's unopposed Motion to Amend the Judgment is **GRANTED**.

Plaintiff has moved to reduce the judgment by \$600 due to an arithmetical error. (See MPA iso Mot., at p. 2.) The outcome of granting this motion will benefit and not prejudice the defendant. Accordingly, the court will issue an amended judgment in the amount of \$17,637.50.

Plaintiff's counsel is to prepare the proposed judgment.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 4

24-CIV-01135

RYAN KOLSTAD VS. LIFEMARK GROUP, A SUBSIDIARY OF NORTHSTAR MEMORIAL GROUP, ET AL

RYAN KOLSTAD

LIFEMARK GROUP, A SUBSIDIARY OF NORTHSTAR MEMORIAL GROUP

PRO SE

CARRIE A. STRINGHAM

Defendant Northstar Memorial Group, LLC's Demurrer to Plaintiff Ryan Kolstad's Second Amended Complaint

TENTATIVE RULING:

Defendant Northstar Memorial Group, LLC's demurrer to plaintiff Ryan Kolstad's Second Amended Complaint (SAC) filed on February 23, 2026, is **SUSTAINED without leave to amend**.

A. Background

Plaintiff Ryan Kolstad alleges that he was employed by defendant Northstar Memorial Group, LLC beginning in January 2011. The employment relationship terminated and resumed multiple times through 2023. Plaintiff alleges he suffered discrimination and defamation by Northstar employee, defendant Greg Lim, throughout plaintiff's employment.

The initial complaint — filed on February 27, 2024 — asserted ten causes of action based on the decade-plus alleged torts and breaches of contract. Former defendant Lifemark Group, Inc., since dismissed, filed a demurrer which the court sustained as to all ten causes of action.

Plaintiff filed his First Amended Complaint (FAC) on July 15, 2024. The FAC asserted ten causes of action and was largely the same as the prior complaint (although it added some 2023 conduct) and omitted Lifemark as a defendant. The court sustained the demurrer without leave to amend and plaintiff appealed.

The Court of Appeal issued its remittitur on February 18, 2025. The appellate court largely affirmed this court's ruling on the demurrer but "[concluded] that Kolstad should be allowed to amend his complaint to try again to state a valid cause of action for breach of contract" and reversed and remanded with respect to that one claim. (Declaration of Carrie A. Stringham iso Demurrer, exh. B.)

On February 23, 2026, plaintiff filed his Second Amended Complaint (SAC) asserting one cause of action for breach of contract.

Northstar has demurred to the SAC for failure to state facts sufficient to state a cause of action. (Code Civ. Proc. § 430.10, subd. (e); Civil Code § 1708.7.) Defendant argues that plaintiff failed to comply with the Court of Appeal's direction to plead specific allegations to assert a viable breach of contract claim and that the SAC fails to allege any breach by defendant.

Arguing that there is no reasonable possibility that the defect can be cured by amendment (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 976; *Traverso v. Dept. of Trans.* (2001) 87 Cal.App.4th 1142, 1144-1145) defendant requests the court sustain without leave to amend.

Plaintiff opposes, contending at this stage in the proceedings the question is whether plaintiff's construction [of the parties' non-disparagement clause in their settlement agreement] may be rejected as a matter of law.

B. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).) The plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) The trial court then has an independent duty to "determine whether or not the . . . complaint alleges facts sufficient to state a cause of action under any legal theory." (*Das v. Bank of America, N.A.* (2010) 186 Cal.App.4th 727, 734.)

C. Discussion

The issue before the court is whether the SAC "[alleges] that any of [defendant's] actions were taken in response to a potential employer's inquiry" and whether plaintiff has pled facts in support of his allegations that defendant breached the non disparagement clause of the settlement agreement, regardless of any such inquiry. (See Stringham Decl., exh. B, at p. 7.)

Plaintiff has not carried his burden of amending the three allegations the Court of Appeal identified as potentially supporting his claim for breach of contract. The three allegations read as follows:

- (1) in March 2020 Lim told Kolstad's employer to find a way to fire Kolstad,
- (2) in May 2021 Kolstad sent an email asking to return to work at a different cemetery (not Northstar), but the email was ignored at Lim's direction, and

(3) in May 2022 Lim told another prospective employer to “watch out for [Kolstad] or he will sue you.”

(Stringham Decl., exh. B, at p. 7.)

The appellate court stated that “Kolstad should be permitted to amend his complaint regarding these allegations under the parties’ agreed-upon construction of the non-disparagement clause.” (Stringham Decl., exh. B, at p. 7.) The Court of Appeal remanded the matter “to give [plaintiff] the opportunity to amend his complaint if he can in good faith allege that any of these actions were taken in response to a potential employer’s inquiry.” (*Ibid.*) Further, it stated that “Kolstad should also be permitted to amend his complaint regarding these allegations under the parties’ disputed construction of the non disparagement clause,” noting that plaintiff’s construction of the clause “barred Northstar from disparaging him at all, regardless of any inquiry by a prospective employer.” (*Ibid.*)

The non disparagement clause in the parties’ settlement agreement reads as follows: “KOLSTAD agrees not to in any way disparage NORTHSTAR or Releasees at any time following the signing of this AGREEMENT. In response to any third party inquiries by prospective employers, NORTHSTAR agrees it shall only provide KOLSTAD’S dates of employment and job title.” (Stringham Decl., exh. B, at p. 2.)

The appellate court stated that “a reviewing court must accept the plaintiff’s allegations regarding the construction of an ambiguous contract, so long as the construction is not clearly erroneous.” (Stringham Decl., exh. B, at p. 8.) Further, “in our view the language is ambiguous enough to at least warrant providing Kolstad with the opportunity to amend his complaint, if he can, with specific allegations of any parol evidence that supports his construction of the clause. (See Code Civ. Proc., § 1856, subd. (g) [parol evidence may be considered “to explain an extrinsic ambiguity or otherwise interpret the terms of the agreement”].)” (*Id.*, at p. 9.)

With this guidance in mind, the court has reviewed the SAC.

Plaintiff alleges that he and Northstar entered into the settlement agreement on May 21, 2018. (SAC, ¶ 11.) Plaintiff alleges that third parties made disparaging statements to or about him in 2018 and 2019 and concludes that Lim and/or Northstar disclosed information about him to these third parties. (See *id.*, ¶¶ 20, 21, 24, 27, 28, 29.) Plaintiff does not plead facts supporting the allegations that Lim and/or Northstar disclosed any confidential or defamatory information.

With respect to the three allegations identified by the Court of Appeal, the SAC does not plead facts supporting plaintiff’s contention that Northstar breached the settlement agreement.

As to the first allegation regarding March 2020, paragraphs 30 and 53 allege that “[i]n or around March 2020, Plaintiff is informed and believes, and thereon alleges, that Greg Lim communicated with IPC Vice President Monica Bracho and influenced actions taken against Plaintiff, including attempts to portray Plaintiff as espousing racist sentiments and Plaintiff’s subsequent furlough for purported ‘production’ reasons.” That allegation does not support the

claim that “in March 2020 Lim told Kolstad’s employer to find a way to fire Kolstad.” (Stringham Decl., exh. B, at p. 7.)

The SAC does not refer to any events in May 2021, when Kolstad allegedly “sent an email asking to return to work at a different cemetery (not Northstar), but the email was ignored at Lim’s direction.” (Stringham Decl., exh. B, at p. 7.) Rather, paragraphs 31 and 54 allege that “[i]n or around March 2021, Plaintiff is informed and believes, and thereon alleges, that Greg Lim communicated with IPC Vice President Monica Bracho and/or CEO Rick Miller regarding a Customer Experience Director job posting used to taunt Plaintiff and underscore Plaintiff’s inability to obtain stable industry employment.” Not only does the March 2021 allegation not reference plaintiff’s alleged request to work at a cemetery other than Northstar, it is unclear how a job posting allegedly was used to taunt plaintiff.

With respect to the allegation that “in May 2022 Lim told another prospective employer to ‘watch out for [Kolstad] or he will sue you,’” (Stringham Decl., exh. B, at p. 7), paragraphs 33-34 and 55 allege that “[i]n or around May 2022, Plaintiff is informed and believes, and thereon alleges, that Greg Lim communicated to Rose Hills manager Fred Nalder words to the effect of ‘watch out for this guy,’ which sentiment was then repeated/reverberated by Nalder in the Rose Hills office during Plaintiff’s first days there.” The phrase “watch out for this guy” is ambiguous, particularly because plaintiff does not allege that Lim said “or he will sue you.” Moreover, plaintiff now alleges that the statement was made in August 2018 when he worked at Inglewood park Cemetery (not Northstar) and claims he “observed and/or heard Jose Oleden loudly state words to the effect of ‘watch out or [Plaintiff] will sue us,’ in a manner heard by others in the office.” (SAC, ¶ 21.) Although plaintiff claims that Lim and/or Northstar must have disclosed information about his prior wage claim or the settlement (see *id.*, ¶ 22), plaintiff has not pled facts to support his allegation.

Because plaintiff has failed to support his breach of contract claim, including with facts that overcome and explain any claimed ambiguity, defendant’s demurer is **SUSTAINED**.

D. Leave to Amend

“[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) Perfection in pleading is not required (*Lloyd v. R.K.O. Pictures, Inc.* (1955) 136 Cal.App.2d 638, 643) but “leave to amend should not be granted where ... amendment would be futile.” (*Nelson v. Tucker Ellis, LLP* (2020) 48 Cal.App.5th 827, 848, cleaned up.)

“Denial of leave to amend is appropriate only when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained. [*Ibid.*]” (Judges Benchbook, § 12.52, p. 1023.)” (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 689.) That being said,

“[t]he onus is on the *plaintiff* to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’ (*CAMSI IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542, 282 Cal.Rptr. 80 (*CAMSI*).)”

(*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

Here, plaintiff has been afforded multiple opportunities to amend the complaint to plead facts demonstrating that Northstar or its agents disparaged him in breach of the settlement agreement. Although plaintiff states he “can identify concrete pre-execution communications bearing directly upon the parties’ intended meaning” (Opp., at p. 9), the communication mentioned — a statement from defendant’s employee Wagner that [Lim] “would not be going anywhere” — does not clarify any ambiguity regarding the non-disparagement clause. At most, the statement indicates that Lim would continue to be employed by defendant, not that the parties had a specific understanding about the scope of the non-disparagement clause. Accordingly, for the reasons stated above, the court finds further leave to amend would be futile and leave to amend is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 5

24-CIV-03759

MEGHNA PATEL, ET AL VS. SHAWN WELLS, ET AL

MEGHNA PATEL
SHAWN WELLS

CATHERINE S. ROBERTSON
JAMES K. ROBERTS

Plaintiffs' Motion for Reconsideration of Oder After Hearing Issued May 8, 2026

TENTATIVE RULING:

Plaintiffs Meghna Patel's and Christopher Pencavel's Motion for Reconsideration is **DENIED**.

Plaintiffs seek reconsideration of the court's May 8, 2026 Order Granting plaintiffs' Motion for Attorneys' Fees (Fees Order) against defendant Hudson Insurance Company (Hudson) pursuant to Code of Civil Procedure section 1008, subdivision (a).

Although Plaintiffs also requested fees against defendant Western Surety Company (Western) in the same Motion, the Fees Order requested further briefing from plaintiffs and Western as to attorneys' fees against Western. No order has been issued by the court regarding fees against Western at this time. As such, this ruling on the Motion for Reconsideration is limited to the Fees Order against Hudson and does not pertain to Western.

Plaintiffs request that the Fees Order be amended to preserve plaintiffs' rights to seek additional attorneys' fees. Plaintiffs previously filed a request for default judgment against Wells, which the court granted including attorneys' fees. Wells then filed a Motion to Set Aside the Judgment. Plaintiffs then filed an attorneys' fees motion against Hudson and Western arguing that they were jointly and severally liable for the attorneys' fees against Wells, and thus the court issued the Fees Order on May 8, 2026 granting fees against Hudson. Plaintiffs argue that when the court entered a modified default judgment against Wells on May 5, 2026, this constituted a change in circumstances that allows Plaintiffs to seek attorneys' fees for the Motion to Set Aside Judgment and for their attorneys' fees motion (fees on fees). Plaintiffs ask the court to remove the language in the Fees Order that "[o]nce plaintiffs took a default against Wells, he could no longer incur fees and costs" because it was rendered inaccurate when the court entered the modified judgment against Wells after a contested motion. Plaintiffs further claim that the language in the Fees Order that "the court will not award plaintiffs more in-attorneys' fees and costs against the sureties under Code of Civil Procedure, section 1029.8, than plaintiffs have been awarded against Wells in the default judgment" was also rendered invalid by the modified judgment.

A motion for reconsideration is based on new or different facts, circumstances or law. (Code Civ. Proc., § 1008, subd. (a).) Plaintiffs fail to show new or different circumstances to warrant reconsideration of the Fees Order. The court entered the modified judgment on May 5, 2026, prior to issuing the Fees Order. In fact, the Fees Order acknowledges the modified

judgment stating: “Plaintiffs are therefore prevailing parties as to Hudson and Hudson is jointly and severally liable with Wells for the \$34,102.50 in attorneys' fees and \$2,673.99 in costs awarded against Wells ***in the modified default judgment, filed on May 5, 2026.***” (Fees Order, at p. 7:19-22, emphasis added.) As such, the modified judgment was not a new or different circumstance since the court was aware of it. Plaintiffs instead appear to be arguing that the Fees Order is erroneous to the extent that the court limited the fees, but this is not a new or different circumstance that warrants reconsideration under Section 1008, subdivision (a).

Plaintiffs’ argument that they should be allowed to seek attorneys’ fees for the Motion to Set Aside Judgment and fees on fees also does not constitute a change in circumstances. As Hudson correctly points out, plaintiffs’ Fees Motion requested fees on fees in the Fees Motion. Therefore, this issue was already before the court when it ruled on the Fees Motion.

Notwithstanding the foregoing, and on its own motion (see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108, as modified (June 10, 2005)), the court has reconsidered and is striking from its May 8, 2026 Fees Order the phrase “[o]nce plaintiffs took a default against Wells, he could no longer incur fees and costs,” which was rendered inaccurate following the litigation of Wells’s motion to vacate the default judgment. The court is not otherwise modifying the Fees Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 6

24-CLJ-00707

WELLS FARGO BANK, N.A. VS. DAVID GONZALEZ

WELLS FARGO BANK, N.A.
DAVID GONZALEZ

HARLAN M. REESE
CODY R. LEJEUNE

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is **GRANTED** pursuant to Code of Civil Procedure, section 438, subdivision (c)(1)(A).

As a preliminary matter, plaintiff has provided an incorrect address for the hearing. Department 28 is not located in Redwood City as the notice states, but instead at the Central Courthouse, Courtroom I, 800 North Humboldt St., San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff's Request for Judicial Notice is **GRANTED**. (Evid. Code, § 452 subd. (d).)

A motion for judgment on the pleadings is to be granted under essentially the same standard as that applied in the case of a general demurrer; that is, whether under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Shea Homes Ltd. Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254.) The court is generally confined to the facts alleged in the challenged pleading, and facts which are subject to judicial notice, and extrinsic evidence is not to be considered. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516; *Sykora v. State Dep't of State Hosps.* (2014) 225 Cal.App.4th 1530, 1534.) Where a defendant's answer raises any material issue or sets up any affirmative matter constituting a defense, a motion for judgment on the pleadings should be denied. (*Allstate Ins. Co. v Kim W.* (1984) 160 Cal.App.3d 326, 330-331.)

Here, plaintiff's judicial council form complaint alleges each element of causes of action for breach of contract and common counts relating to defendant David Gonzalez's credit card agreement. The genuineness of any documents and the truth of any matters specified in plaintiff's requests for admission, set one, were deemed admitted pursuant to the court's April 8, 2026 order re plaintiff's motion to deem facts admitted. (RJN, exh. C.) Those requests for admissions included admissions that: (1) defendant had an account with plaintiff ending in 6259; (2) the monthly account statements were sent to defendant requesting minimum payments; (3) defendant never notified plaintiff of a dispute; (4) as of February 8, 2024 there was a balance owing of at least \$5,083.40 on the account; (5) defendant has not paid any amount on the account since that date; (6) defendant owes at least \$5,083.40 on the account; (7) the consumer credit card customer agreement and disclosure statement applicable to the account contains a provision entitled plaintiff to attorney's fees; (8) defendant does not have

“credit defense” (e.g., any debt cancellation agreement), and/or that defendant does not qualify for its benefits; (9) and that the affirmative defenses asserted lack merit and evidentiary support. (RJN, exh. B.)

In light of these admissions, plaintiff has established the elements of a cause of action for breach of contract and common counts, and defendant’s Answer does not support any defense.

The Motion is accordingly **GRANTED** and Judgment is to be immediately entered against defendant David Gonzalez in the amount of \$5,083.40 less \$571.40 in principal. Plaintiff has filed a memorandum of costs which also seeks attorney’s fees in the amount of \$800 per the court’s schedule. If defendant does not timely move to tax or strike, plaintiff may move to amend the judgment to include fees and costs.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 7

25-CIV-04767

JIAQI WU VS. GENERAL MOTORS, LLC.

JIAQI WU
GENERAL MOTORS, LLC.

JAMES LAWRENCE CARROLL
KRISTEN ALLISON

Defendant's Motion for Compliance Pursuant to C.C.P 871.26; and Request for Sanctions

TENTATIVE RULING:

For the reasons stated below, defendant General Motors, LLC's "Motion for Compliance Pursuant to C.C.P. § 871.26, and Request for Sanctions," filed on May 29, 2026, is **GRANTED in part** and **DENIED in part**.

GM's motion to compel plaintiff to appear for deposition within ten (10) days of the September 16, 2026 hearing date is **GRANTED**. (Code Civ. Proc., § 871.26, subd. (c).)

Plaintiff does not dispute that Section 871.26 applies to this case. The statute requires that plaintiff appear for an initial deposition within 120 days after defendant's responsive pleading. (Code Civ. Proc., § 871.26, subd. (c).) GM filed its demurrer (that is, the initial responsive pleading) in early October 2025. Thus, plaintiff's deposition should have taken place by February 2026 (nearly six months ago). Plaintiff argues that this motion to compel the deposition is moot, because after GM filed this motion, plaintiff agreed to appear for deposition on September 9, 2026, and thus, plaintiff argues that the deposition will be completed by the time of the September 16, 2026 hearing. The court has no way to know whether the September 9 deposition will actually go forward (or has happened). Neither party has updated the court on this issue. Plaintiff previously agreed to prior deposition dates, only to later cancel them. This order compelling the deposition will be rendered moot, of course, if, by the time of the September 16, 2026 hearing, plaintiff's Section 871.26 deposition has already occurred.

Defendant's request for monetary sanctions against plaintiff's counsel is **DENIED**. Code of Civil Procedure, section 871.26, subdivision (c) mandates an award of monetary sanctions "[u]nless the party failing to comply with this section shows good cause." Here, after GM agreed to a February 21, 2026 date for plaintiff's deposition, it appears that plaintiff, plaintiff's counsel, and a Cantonese interpreter were *ready to proceed on that date*, but GM chose to cancel the deposition and to re-schedule it, because plaintiff had provided their own interpreter, and GM preferred to use its own interpreter. Thus, GM chose to re-schedule the deposition. This fact makes it difficult for GM to argue that plaintiff has evaded the deposition.

Further, although plaintiff later agreed to a March 25, 2026 deposition date, only to send a letter on March 11, 2026 stating that plaintiff was no longer available on March 25, 2026 (Stark Decl., ¶ 13), since that time there is no evidence that GM has tried to re-schedule the deposition. The Stark declaration states that since March 11, 2026, "Plaintiff has not attempted to reschedule the deposition." (*Id.*, ¶ 15.) But the same could be said of GM. GM filed this motion on May 29,

2026. There is no evidence that from March 11, 2026 to August 2026, GM's counsel made any attempt to reschedule the deposition.

Thus, although plaintiff has some blame here, under the circumstances, the court finds that plaintiff has shown sufficient "good cause" to avoid sanctions.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, GM's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 8

25-CIV-08356

JOSE MONTEVERDE VS PACIFICA LINDA MAR, INC.

JOSE LUIS MONTEVERDE
PACIFICA LINDA MAR, INC.

SEUNG YANG
JANELLE L. MENGES

Defendant's Petition to Compel Arbitration, Dismiss Class Claims, and Stay Further Proceedings Pending Arbitration

TENTATIVE RULING:

Defendant Pacifica Linda Mar, Inc.'s Motion to Compel Arbitration of plaintiff's claims is **GRANTED**. Plaintiff's class claims and individual PAGA claims are compelled to arbitration, and plaintiff's non-individual PAGA claim is stayed pending the outcome of arbitration.

Defendant argues that the court should not consider plaintiff's opposition because it was filed late according to the parties' proposed briefing schedule for the motion, submitted as part of the parties' Joint Case Management Statement on June 16, 2026. Plaintiff's counsel responds that because the court did not confirm the parties' schedule, counsel did not calendar the dates. Plaintiff's counsel's declaration adequately explains the delay, and defendant has not shown that it was prejudiced. Plaintiff filed his opposition almost a month before the hearing on the motion and defendant's reply brief shows that it had adequate time to respond to the opposition.

A. The Parties Entered into an Arbitration Agreement

Defendant has met its burden and proved by a preponderance of evidence that the parties entered into an arbitration agreement and that the dispute is covered by the agreement. (Knight, Cal. Prac. Guide: Alt. Disp. Res. (Rutter, Dec. 2025 Update) ¶ 5:320.)

Joanne Lane, defendant's Administrator and Custodian of Records, who is responsible for "day-to-day operations of the facility, including Human Resources, Payroll, and Staff Development" states that she is familiar with the process of onboarding employees. (Lane Decl., filed Mar. 6, 2026, ¶¶ 2-3.) Ms. Lane states that plaintiff signed a Voluntary Mutual Agreement to Arbitrate (Agreement) on or about July 18, 2023, and attached a copy of the agreement as Exhibit A to her declaration. (*Id.*, ¶ 5, exh. A.)

The parties to the Agreement are identified as "Linda Mar Care Center" and "this employee named below." (Agreement, at p. XIII.) The Agreement has a line for "Employee Signature" with a signature above it, a line for "Printed Employee Name," above which is handwritten "Jose Monteverde." (*Id.*, at p. XVI.) The signature and printed name are hand dated July 18, 2023. There are also lines for "Company Representative Signature" and "Title of Company Representative," and a space to write the date next to those lines, all of which are blank.

Plaintiff raises two objections to the Agreement: the name of the company on the Agreement does not match the name of the defendant he sued, and the Agreement is not countersigned. Defendant has adequately addressed both issues.

In support of its reply, defendant has submitted another declaration from Ms. Lane in which she states that defendant “has utilized two fictitious business names in connection with the operation of the facility for many years,” including “Linda Mar Care Center,” and that defendant is registered to do business using its fictitious names. (Lane Dec. iso Reply, filed Sept. 2, 2026, ¶¶ 4-6.) Attached to that Reply Declaration is a copy of defendant’s fictitious business name statement for the name “Linda Mar Care Center,” filed in San Mateo County on June 10, 2026. (*Id.*, ¶ 5, exh. B.)

The fictitious business name registration document demonstrates that the name “Linda Mar Care Center” on the Agreement is one of defendant’s “doing business as” names. Defendant is therefore the same legal entity as its dba name “Linda Mar Care Center.” (See *Pinkerton’s, Inc. v. Superior Court* (1996) 49 Cal.App.4th 1342, 1348.) Accordingly, defendant is a signatory to and can enforce the Agreement against plaintiff. (See Bus. & Prof. Code, § 17918 [“No person transacting business under a fictitious business name contrary to the provisions of this chapter, or his assignee, may maintain any action upon or on account of any contract made, or transaction had, in the fictitious business name in any court of this state until the fictitious business name statement has been executed, filed, and published as required by this chapter.”].)

Despite defendant’s lack of signature on the Agreement, defendant has manifested its intent to be bound by the Agreement by drafting the Agreement; presenting it to plaintiff and other employees as part of its regular onboarding process (Lane Decl., ¶ 4); using language binding both parties (see Agreement, generally); and seeking to enforce the Agreement through this motion. (See *Serafin v. Balco Props. Ltd., LLC* (2015) 235 Cal.App.4th 165, 176; *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 398-399.)

Defendant has also demonstrated that the FAA applies to the Agreement because the Agreement explicitly states that the FAA applies. (Agreement, at p. XII; see *Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 1054 [“the FAA governs the arbitration agreement between Tuufuli and West Coast Dental because the parties agreed that it would.”].) The Agreement includes a class action waiver clause, which is enforceable. “[A]rbitration agreements governed by the FAA may waive classwide arbitration regardless of whether class arbitration procedures are available and despite state law finding such waivers unconscionable.” (Chin, *Cal. Prac. Guide: Employment Lit.* (Rutter, April 2025 Update) ¶ 18:621.31; see also *id.*, ¶ 18:363 [“The FAA preempts California law that bars as unconscionable class arbitration waivers in employment agreements”].)

B. The Agreement is Not Unconscionable

Plaintiff argues that the Agreement is both procedurally and substantively unconscionable.

Unconscionability has both a substantive and procedural element. (*Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91, 104 (*Stoker*)). “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*)). This element “is generally established by showing the agreement is a contract of adhesion, i.e., a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’” (*Ramirez v. Charter Communications* (2024) 16 Cal.5th 478, 492 .) Substantive unconscionability “‘pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.’” (*Kho, supra*, at p. 125.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’ [Citation.] Instead, they are evaluated on “‘a sliding scale.’” [Citation.] ‘[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to’ conclude that the term is unenforceable. [Citation.] Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required. [Citation.] A contract’s substantive fairness ‘must be considered in light of any procedural unconscionability’ in its making.” (*Kho, supra*, 8 Cal.5th at p. 125.) “‘The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.’” The burden of proving unconscionability rests upon the party asserting it. (*Kho, supra*, at p. 126; *Stoker, supra*, 120 Cal.App.5th at p. 104.)

Ms. Lane states that employees are presented with the standardized Agreement as part of the onboarding process. The Agreement is an adhesion contract. (See *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492 [procedural unconscionability “is generally established by showing the agreement is a contract of adhesion, i.e., a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’”].)

However, the Agreement contains an opt-out provision, which “tends to undercut a finding of procedural unconscionability.” (*Cluck v. GEO Secure Services, LLC* (2026) 122 Cal.App.5th 249, 347 Cal.Rptr.3d 44, 50.) At the top of the last page, in a section titled “Opt Out Period,” the Agreement states that “[e]ither Party may voluntarily opt out of this Agreement by providing a written notice of revocation to the other Party within fifteen (15) days after signing this Agreement.” (Agreement, at p. XVI.) Like the agreement considered by the court in *Cluck*, the Agreement here does not include a check box allowing plaintiff to opt out and only has a signature line for agreeing, not for disagreeing. (*Cluck, supra*, 247 Cal.Rptr.3d at p. 51.) The opt-out procedure here is distinct from that in *Cluck* because it does not require any specific process, but instead only requires that revocation be written. The court therefore infers that plaintiff could have opted out by submitting any writing indicating that he was opting out of the Agreement. Because plaintiff did not submit a declaration in support of his opposition, however, the court lacks information as to what burden this procedure may have presented to him.

Plaintiff also argues that defendant's use of fictitious business names "creates significant confusion," and plaintiff makes general statements about how this negatively impacts an employee's ability to meaningfully evaluate whether to surrender rights. (MPA, at p. 6:9-16.) However, plaintiff neither argues nor presents evidence that *he* was confused, or that defendant's use of a fictitious business name impacted *his* ability to evaluate the Agreement. Without this evidence, the court cannot find procedural unconscionability as to defendant's use of a fictitious business name.

Notwithstanding this, because there is at least a minimal degree of procedural unconscionability, however, the court proceeds to consider whether the Agreement is substantively unconscionable.

Plaintiff argues that the Agreement is overbroad because its scope covers more than employment disputes. The Agreement states the following:

Voluntary Mutual Agreement to Arbitrate and Waive Jury Trial. Company and Employee agree to resolve any and all disputes between them, past, present or future, whether or not arising out of or in any way related to Employee's application for employment with Company or the employment relationship, including any disputes upon termination, by binding arbitration as the sole and exclusive remedy of the Parties to the fullest extent permitted by law.

(Agreement, at p. XIII, emphasis in original.)

Defendant argues that the language of the Agreement extending its application to all claims whether or not they arise from plaintiff's application for employment or employment relationship "simply means that if a claim arises out of employment but does not involve plaintiff's application or termination, it is still covered under the agreement, and vice versa." (Reply, at p. 7:8-10.) Defendant points to the Agreement's list of covered disputes, arguing that they are all employment-related, as further proof of this. (*Id.*, at p. 7:11-13.)

Plaintiff argues that the scope provision is analogous to one found unconscionable in *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 (*Cook*), while defendant argues that the scope provision is more akin to the one found valid in *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241 (*Ayala-Ventura*).

The *Cook* court found the agreement's scope unconscionably broad:

The arbitration agreement drafted by USC applies to all claims "whether or not arising out of Employee's University employment, remuneration or termination." If USC had been concerned about capturing termination or retaliation claims related to Cook's employment, it simply could have limited the scope of the agreement to claims arising out of or relating to her employment or termination. It is difficult to see how it is justified to expect Cook — as a condition of her employment at the university — to give up the right to ever sue a

USC employee in court for defamatory statements or other claims that are completely unrelated to Cook's employment.

(*Cook, supra*, 102 Cal.App.5th at p. 325.)

Ayala-Ventura involved a lawsuit brought by an employee against her employer, “CCS Facility Services-Fresno Inc.,” a company which “provides commercial janitorial services” (CCS). (*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 246.) CCS sought to compel arbitration, but the plaintiff contended that the arbitration agreement she signed with CCS was unconscionable. (*Ibid.*)

Ayala-Ventura argues the Agreement's scope is overly broad because it applies to claims unrelated to her employment relationship with CCS and requires binding arbitration of essentially any claim she may have against her employers and all related entities and individuals whether arising out of employment or not. . . . the Agreement mandates arbitration ‘of all claims, disputes, and/or controversies (collectively ‘claims’), whether or not arising out of [Ayala-Ventura]'s employment or the termination of employment, that Company may have against [Ayala-Ventura] or that [Ayala-Ventura] may have against Company or against its employees or agents in their capacity as employees or agents.’ CCS claims this language means if a claim arises out of employment but does not involve termination of employment, it is still covered and vice versa. CCS argues the Agreement is not overbroad because its intended scope is employment-related claims.

Notwithstanding that the agreement appeared to apply to claims other than those relating to her employment, the court construed the agreement in *Ayala-Ventura* to be limited to employment-related claims.

The parties' opposing interpretations reflect the Agreement is somewhat ambiguous in its application to claims that are not employment related. Ambiguities in an adhesive contract are construed against the drafter. (*Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 247–248; *Victoria v. Superior Court* (1985) 40 Cal.3d 734, 739.) Civil Code section 1654 codifies this principle by mandating an interpretation against the drafting party who caused the uncertainty but only ‘[i]n cases of uncertainty *not removed by the preceding rules.*’ (Italics added.) Civil Code section 1643 precedes Civil Code section 1654 and requires interpretation of a contract that ‘will make it lawful, operative, . . . and capable of being carried into effect, if it can be done without violating the intention of the parties.’

(*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 246.) Significantly, the court noted that:

Our Supreme Court has specifically applied Civil Code section 1643 in construing arbitration agreements. ‘Where a contract is susceptible to two interpretations, one which renders it valid and the other which renders it void, a court should select the interpretation that makes the contract valid.’ (*Ramirez, supra*, 16 Cal.5th at p. 507; *Pearson Dental Supplies, Inc. v. Superior Court* (2010) 48 Cal.4th 665, 682 [‘When an arbitration

provision is ambiguous, we will interpret that provision, if reasonable, in a manner that renders it lawful, both because of our public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution, and because of the general principle that we interpret a contractual provision in a manner that renders it enforceable rather than void.’].) Construing the Agreement in a manner that avoids unconscionability, we interpret the Agreement as applying to only employment-related claims.

(*Ayala-Ventura*, *supra*, 119 Cal.App.5th at p. 246.)

The court also found that “*Cook* must be considered in its own context which differs materially from the circumstances in this case,” reasoning as follows:

The agreement in *Cook* was unconscionable in part because of the multifarious ways in which a claim against USC “completely unrelated to [Cook’s] employment” could arise. (*Cook*, *supra*, 102 Cal.App.5th at p. 318.) As an example, the trial court observed that if Cook were to undergo a botched surgery at USC’s hospital in 15 years, her claims would still be subject to arbitration. (*Ibid.*) Given CCS solely provides commercial janitorial services, we are hard-pressed to discern how a similarly vast range of claims completely unrelated to Ayala-Ventura’s employment could arise, nor does Ayala-Ventura offer a similar panoply of potential claims she might assert. The Agreement’s scope is not unconscionably broad under the circumstances in this case.

(*Ayala-Ventura*, *supra*, 119 Cal.App.5th at p. 257.)

Here, the scope provision is more analogous to that considered in *Ayala-Ventura* than the one in *Cook*. The scope provision in the instant agreement contains language that does not appear to have been in the provision considered in *Ayala-Ventura*: “past, present, or future.” Plaintiff could have claims against defendant in the future outside of the employment context. For example, he could sue defendant on behalf of himself or a family member for a claim arising from treatment or care at defendant’s facility. Contrary to defendant’s argument, the list of covered claims is not limited to employment-related claims, because it includes “claims for breach of any contract or covenant, express or implied,” “tort claims,” and “claims for violation of any federal, state or other governmental constitution, statute, ordinance, or regulation, except as explicitly excluded herein.” Based on the language of the scope provision, plaintiff would be compelled to arbitrate these claims, making the Agreement more like that found in *Cook*, rather than in *Ayala-Ventura*.

If it cannot be severed, the overbroad scope provision makes the Agreement substantively unconscionable. However, our Supreme Court has directed trial courts to consider severability.

The basic principles of severability that emerge from Civil Code section 1599 and the case law of illegal contracts appear fully applicable to the doctrine of unconscionability. Courts are to look to the various purposes of the contract. If the central purpose of the contract is tainted with illegality, then the contract as a whole cannot be enforced. If the illegality is collateral to the main purpose of the contract, and the illegal provision can be

extirpated from the contract by means of severance or restriction, then such severance and restriction are appropriate.

(*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 124.)

An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. [Citation.]” (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 223, 207 Cal.Rptr.3d 473.) Severance may be properly denied when the agreement contains more than one unconscionable provision, and ““there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.””

(*Cook, supra*, 102 Cal.App.5th at pp. 328-329, quoting *Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 738; see also *Stoker, supra*, 120 Cal.App.5th at p. 113:

Finally, the court noted, if a contract contains a severance clause, a court “should take it into account as an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced. [Citations.] That said, we note that the parties to an agreement cannot divest a trial court of its discretion under Civil Code section 1670.5 by including such a severance clause.”

Here, the Agreement has a severance clause which states that:

Any and all issues regarding the scope, interpretation, and enforceability of this Agreement shall be decided exclusively by a court of competent jurisdiction, and not by the arbitrator. In the event any provision of this Agreement is found to be unenforceable by such court, that provision shall be deemed modified to the extent necessary to allow enforceability of the provision as so limited, it being intended that the Parties shall receive the benefit contemplated in this Agreement to the fullest extent permitted by law. *If* a deemed modification is not satisfactory in the judgment of such court, the unenforceable provision shall be deemed deleted, and the validity and enforceability of the remaining provisions shall not be affected thereby

(Agreement, at pp. XV-XVI.)

Plaintiff has failed to demonstrate that the Agreement is permeated with unconscionability such that severance is inappropriate. Defendant’s drafting of the provision at issue does not appear to have been done in bad faith and can reasonably be seen as an attempt to ensure that all employment-related claims are covered. As discussed above, the scope language is improperly overbroad; the court therefore severs it as follows:

Voluntary Mutual Agreement to Arbitrate and Waive Jury Trial. Company and Employee agree to resolve any and all disputes between them, past, present or future, ~~whether or not~~ arising out of or in any way related to Employee's application for employment with Company or the employment relationship, including any disputes upon

termination, by binding arbitration as the sole and exclusive remedy of the Parties to the fullest extent permitted by law.

By deleting the struck-out language, the Agreement is limited to employment-related disputes. As so modified, the Agreement is enforceable.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 9

25-CIV-09818

PETER BURJANEC VS. META PLATFORMS INC.

PETER BURJANEC
META PLATFORMS INC.

DAVID T. WANG
SHARDE T SKAHAN

Plaintiff's Motion for Leave to File First Amended Complaint; Request for Monetary Sanctions

TENTATIVE RULING:

Plaintiff Peter Burjanec's Motion for Leave to File First Amended Complaint and Request for Monetary Sanctions is **GRANTED in part**.

Attorney of record for Defendant Meta Platforms, Inc., Shardé T. Skahan, is **ORDERED TO APPEAR** to explain why Meta's memorandum of points and authorities in support of its opposition states that *Fall River v. Superior Court* (1988) 206 Cal.App.3d 431 (*Fall River*) involved a "den[ia] [of] joinder where the factual divergence between claims was too great" (Sept. 2, 2026 Memo. of Points & Auths. iso Opposition (Opp.), at p. 7:25-26) when the case did not involve any issue of joinder but instead the improper denial of a motion for judgment on the pleadings made on the basis that the plaintiffs had failed to comply with the Government Claims Act because the challenged cause of action "patently attempt[ed] to premise liability on an entirely different factual basis than what was set forth in the tort claim." (*Fall River, supra*, at p. 435).

A court may, in its discretion, allow amendment to any pleading upon any terms as may be just after notice to the adverse party. (Code Civ. Proc., § 473, subd. (a); see *id.*, § 576.) Motions for leave to amend are directed to the sound discretion of the judge, but that discretion must be "exercised liberally to permit amendment of the pleadings. [citations] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428, citations omitted.) "With respect to the amendment of pleadings, there has developed in this state a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576, superseded by statute on other grounds, see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, .)

Here, plaintiff Peter Burjanec seeks to file an amended complaint that adds Umar Butt as an additional plaintiff, because Meta has refused to stipulate to the amendment. Burjanec and Butt allege that they held the same position; were on the same team; reported to the same supervisor who acted against them due to her anti-male animus; reported to the same skip-level manager; were fired in the same pretextual reduction-in-force layoff based on the same pretextual 'low performer' rationale; were subjected to the same defamatory statements made by Meta's

officers; and seek to assert the same causes of action. (See May 27, 2026 Declaration of David T. Wang, ¶¶ 5–6, exh. 2; see also Dec. 16, 2026 Complaint, *passim*.)

Butt’s addition to the present lawsuit is permitted by Code of Civil Procedure, section 378. That statute allows multiple plaintiffs to join in one action if either (1) “[t]hey assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or (2) [t]hey have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action.” (Code Civ. Proc., § 378, subd. (a).) Section 378 “*should be liberally construed, unless expressly forbidden, to the end that a multiplicity of suits may be prevented.*” (*Petersen v. Bank of America Corp.* (2014) 232 Cal.App.4th 238, 249.) “Consistent with this presumption in favor of joinder, a right to relief arises from the same transaction or occurrence under section 378 so long as there is *any factual relationship* between the claims joined.” (*Smith v. Superior Court* (2026) 121 Cal.App.5th 607, 619, quotation marks omitted.)

In its Opposition, Meta focuses most of its argument on the particular differences between Burjanec’s and Butt’s cases while attempting to distinguish the similarities. While the two sets of claims will require some different evidence to prosecute or defend against, they will also involve much of the same facts and evidence. Plaintiffs allege that they were both fired by the same supervisor, from the same position, due to the same discriminatory and retaliatory animus, based on the same pretext of their unsatisfactory performances. Burjanec and Butt allege that their respective employments were terminated the *very same day* as part of a *single initiative* to terminate purported ‘low performers’— which involves at least one question of fact common to them, such that amendment of the Complaint to join Butt as an additional plaintiff is proper.

The motion is also timely. Burjanec’s and Butt’s counsel sought Meta’s agreement to an amendment the day after Butt made a final decision to seek judicial relief against Meta and filed this motion less than a week after Meta responded. (Wang Decl., ¶¶ 7–10.) No trial date has been set, and Meta has not conducted nor responded to any discovery. Meta nonetheless contends that Burjanec was not diligent, arguing that he should have moved to add Butt *against his will* before Butt had decided to sue. (Opp., at p. 10:25-26.) This argument may be dismissed out of hand. Meta also argues that Butt was not diligent, because he should have filed a lawsuit immediately upon accrual of his claims. (*Id.*, at p. 10:23-25.) However, during the fewer than six months this lawsuit was pending before deciding to join, Butt “weighed the personal, professional, and economic consequences of litigation against an employer of Meta’s size and visibility”— such deliberation is a credible and acceptable reason for the delay. (Wang Decl., ¶ 7.)

Meta also complains of prejudice, but the only prejudice is the costs of defending against Butt’s claims — which would be greater if amendment were disallowed and Meta were to defend a separate lawsuit. It is thus not the type of prejudice warranting denial of leave to amend. Burjanec and Butt have also offered to permit Meta to supplement its currently pending motion to

compel arbitration to address Butt's claims, thereby saving any cost of filing a second motion. Accordingly, leave to file the proposed first amended complaint is **GRANTED**.

As for sanctions, Burjanec requests that Meta pay his attorney fees and costs incurred to bring this motion due to Meta refusal to stipulate. While Meta's refusal and opposition is certainly not justified, Burjanec relies solely on subdivision (a)(8) of Code of Civil Procedure, section 128 as grounds for a monetary sanction. "Clear Supreme Court authority, in *Bauguess v. Paine* (1978) 22 Cal.3d 626, 150 Cal.Rptr. 461, 586 P.2d 942, precludes an award of attorney's fees as sanctions unless specifically authorized by statute, such as by certain discovery statutes (see Code of Civil Procedure section 2034, subdivision (d))." (*Yarnell & Associates v. Superior Court* (1980) 106 Cal.App.3d 918, 921.) "[S]uch fees [can]not be awarded under the court's inherent supervisory power or under authority of Code of Civil Procedure section 128." (*Id.*, at p. 922.) Further there is no showing of compliance with the procedural requirements of Code of Civil Procedure sections 128.5 and 128.7. Accordingly, the request for sanctions is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 10

26-CIV-01031 JOSHUA WILSON, ET AL VS. ALON DESIGN AND REMODELING INC., ET AL

JOSHUA WILSON
ALON DESIGN AND REMODELING INC.

PRO SE

Attorney David Tran's Motion to be Relieved as Counsel

TENTATIVE RULING:

The motion to be relieved filed by counsel for defendant Eli Alon is **GRANTED**.

On August 11, 2026, defendant's counsel filed a notice of the court's August 4, 2026 ruling advancing the hearing of this motion to September 16, 2026 at 2:00 p.m., and filed a proof of service of the notice on Alon by email and U.S. Mail.

The proposed order must be updated to reflect any future hearings and will be effective upon the filing of the proof of service of this signed order upon the Eli Alon.

Counsel must advise the court whether they still represent the defaulted defendants Alon Design and Remodeling, Inc. and Enis Tursic.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 11

26-CIV-01392

ELENA LAUCHUNG-NACARINO VS. AMERICAN AIRLINES INC., ET AL

ELENA LAUCHUNG-NACARINO
AMERICAN AIRLINES INC.

JEFF D. NEIDERMAN
ANDREW P. FREDERICK

Defendant Mark Lam's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

Plaintiff Elena Lauchung-Nacarino has sued her former employer, defendant American Airlines, Inc., and her former supervisor, defendant Mark Lam for harassment based upon race/national origin, harassment based upon sex/gender, and intentional infliction of emotional distress (IIED), as well as other claims not alleged against defendant Lam.

Defendant Lam's demurrer is **SUSTAINED** with leave to amend as to plaintiff's claim for harassment based on race/national origin (second cause of action). Defendant Lam's demurrer is **OVERRULED** as to plaintiff's claims for harassment based on sex/gender (fourth cause of action) and IIED (eleventh cause of action).

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

"[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Aubry, supra*, 2 Cal.4th at p. 967.) If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.)

B. Discussion

1. Harassment Claims – Race/National Origin and Sex/Gender

To establish a claim of harassment under the FEHA, “an employee claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was *severe enough or sufficiently pervasive* to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees *because of* [their protected characteristic].” (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 278-279 (*Lyle*), emphasis in original.)

Plaintiff’s Complaint alleges that she is a 51-year-old Latina female of Peruvian American descent. She further alleges that general and supervisory America Airlines employees, including defendant Lam, discriminated against her, and describes some examples of harassing and discriminatory conduct:

- Asking plaintiff on several occasions if she was Filipina and then telling her that they would only agree to assist and/or train plaintiff if she was Filipina;
- Telling plaintiff that she did not look Latina and that she did not have “Latina features”;
- Asking plaintiff if she was from Peru, what language she spoke and if she spoke “Incan”;
- Refusing and/or failing to provide plaintiff with training because she was not Asian and/or Filipina;
- Making various sexist and insulting comments to plaintiff, and other female employees, including, but not limited to, teasing plaintiff and other female employees about their appearance and the clothes they wore to work.
- On one occasion, plaintiff witnessed Lam ask another female coworker what she was wearing under her blouse and instructed her to open up her shirt in front of other employees.
- On another occasion, plaintiff was asked what she was wearing under her scarf;
- Constantly asking plaintiff and other female employees, what they were doing, where they were going and generally micromanaging the female employees more than the male employees

(Complaint, ¶ 3.)

Lam argues that the Complaint fails to attribute any of the alleged harassing conduct specifically to him, with the exception of the allegation that plaintiff witnessed him ask another

female employee what she was wearing under her blouse and instructed her to open her shirt in front of other employees. That is insufficient to plead conduct by defendant Lam related to *plaintiff's* race or national origin.

Accordingly, Lam's demurrer is **SUSTAINED with leave to amend** as to plaintiff's claim for harassment based on race/national origin (second cause of action).

However, the allegation against defendant Lam involving another female employee, which was witnessed by plaintiff, is sufficient to state a cause of action against Lam for sex/gender harassment.

A plaintiff can establish a hostile work environment based on witnessing the harassment of others:

[S]exual conduct that involves or is aimed at persons other than the plaintiff is considered less offensive and severe than conduct that is directed at the plaintiff. [Citations.] A hostile work environment sexual harassment claim by a plaintiff who was not personally subjected to offensive remarks and touchings requires 'an even higher showing' than a claim by one who had been sexually harassed without suffering tangible job detriment: such a plaintiff *must* 'establish that the sexually harassing conduct permeated [her] direct work environment.' [Citation.] [¶] To meet this burden, the plaintiff generally must show that the harassment directed at others was in her immediate work environment, and that she personally witnessed it. [Citation.] The reason for this is obvious: if the plaintiff does not witness the incidents involving others, 'those incidents cannot affect ... her perception of the hostility of the work environment.' [Citation.]

(*Lyle, supra*, 38 Cal.4th at pp. 284-285.)

"A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code, ¶ 12934, subd. (b).) "The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination." (*Id.*, subd. (c).)

Here, plaintiff alleges a specific incident of harassment based on sex/gender, in which plaintiff allegedly witnessed defendant Lam ask another female employee what she was wearing under her blouse and instructed her to open her shirt in front of other employees. (Complaint, ¶ 3.) Further, the context of the pleading sufficiently alleges that this type of conduct permeated the work environment, as plaintiff alleges that general and supervisory employees "ma[de] various sexist and insulting comments to plaintiff, and other female employees, including, but not limited to, teasing plaintiff and other female employees about their appearance and the clothes

they wore to work[.]” and that plaintiff was once “asked what she was wearing under her scarf.” (*Id.*, ¶ 3.)

Defendant argues that plaintiff fails to provide the specific context of the comment. Lam may be able to provide context establishing that the alleged conduct was not harassing, however, that is an evidentiary issue that is not properly resolved on a demurrer. At the pleading stage, the allegations are sufficient to state a cause of action for harassment based on sex/gender against Lam.

Accordingly, Lam’s demurrer is **OVERRULED** as to plaintiff’s claim for harassment based on sex/gender.

2. *IIED Claim*

To state a cause of action for intentional infliction of emotional distress, a plaintiff must show all the following: “(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.) To be “outrageous,” the conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Ibid.*) “Mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities do not constitute extreme and outrageous conduct.” (*Okorie v. Los Angeles Unified Sch. Dist.* (2017) 14 Cal.App.5th 574, 597.)

Here, the allegation that plaintiff allegedly witnessed defendant Lam ask another female employee what she was wearing under her blouse and instructed her to open up her shirt in front of other employees supports an inference that Lam’s conduct was outrageous and exceeded the bounds tolerated in a civilized society. (Complaint, ¶ 3.) As noted above, whether Lam’s conduct was in fact reasonable under the circumstances is an evidentiary question that cannot be resolved on demurrer. Plaintiff has sufficiently pled intent and/or reckless disregard, along with severe distress and causation. (Complaint, ¶¶ 157-165.)

Accordingly, defendant Lam’s demurrer is **OVERRULED** as to plaintiff’s IIED claim (eleventh cause of action). (*See Hughes v. Pair* (2006) 46 Cal.4th 1035, 1050 [Properly pleaded sexual harassment claims can establish outrageous behavior element of IIED].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 12

26-UDL-00556

CARLOTTA CT., LLC VS. BRITTANY L PICKETT ROSE

CARLOTTA CT., LLC
BRITTANY L PICKETT ROSE

STEVEN T. NAUMCHIK

Defendant's Demurrer to Complaint

TENTATIVE RULING:

Defendant Brittany Pickett-Rose's Demurrer to Complaint is **SUSTAINED without leave to amend.**

As a preliminary matter, notice of demurer was purportedly served by mail. "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) The proof of service of the demurrer does not set forth the exact title of the documents served and merely states that the papers were "served ... by mailing a copy" (see Demurrer, filed Aug. 21, 2026 at p. 11:11-12) without "also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid." (Code Civ. Proc., § 1013a, subds. (b), (c); see *id.*, § 1013, subd. (a) [paper must be mailed "in a sealed envelope, with postage paid"].)

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) However, because plaintiff filed an opposition, the court will consider the demurrer.

First, a complaint for unlawful detainer must "[s]tate specifically the method used to serve the defendant with the notice or notices of termination upon which the complaint is based." (Code Civ. Proc., § 1166, subd. (a)(5).) "This requirement may be satisfied ... by attaching a proof of service of the notice or notices of termination served on the defendant[,] which the Complaint does here. (*Ibid.*; see May 11, 2026 Complaint, at p. 2:15-18, exh. A, at p. 3.) However, the proof of service does not show that the sixty-day notice on which the Complaint is based was served, instead referring to an unknown notice to pay rent or quit. (Complaint, exh. A, at p. 3.) Accordingly, while the Complaint alleges that "plaintiff caused to be served upon the defendant a written notice terminating their tenancy and requiring defendant to deliver up possession of said premises on or before May 1, 2026," the Complaint fails to state specifically how that notice was served and therefore fails to state a cause of action.

Second, "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civ. Code, § 1946.2, subd. (a).) The Complaint admits that the tenancy began in 2024 (Complaint, at p. 2:11-

13), and thus a statement of just cause in the notice is required unless the Complaint adequately pleads an exemption from the statutory requirement.

The Complaint attempts to rely on the exemption provided by subdivision (e)(8) of Civil Code, section 1946.2, which provides that residential real property alienable separate from the title to any other dwelling unit is exempt provided that (1) the owner is not a real estate investment trust, corporation, limited liability company with a corporation as a member, or management of a mobilehome park and (2) the tenant has been provided a written notice of the exemption “in the rental agreement” using prescribed statutory language. (Civ. Code, § 1946.2, subd. (e)(8).) While the Complaint alleges that it meets the first requirement, it does not expressly allege that written notice of the exemption was provided in the rental agreement. (See Complaint, p. 2:20-28.)

The omission of this allegation is understandable, given that the Complaint admits the rental agreement was oral. (Complaint, at p. 2:11-13.) It nonetheless appears an attempt to cure the absence of written notice was made by altering the rental agreement’s terms to include the written notice pursuant to Civil Code, section 827, which allows a landlord to change the terms of a lease for a periodic tenancy “upon giving notice in writing to the tenant, in the manner prescribed by Section 1162 of the Code of Civil Procedure.” (Civ. Code, § 827, subd. (a)(1).) The written notice of termination includes a paragraph stating that the terms of the subject tenancy were amended to include the written notice of exemption, effective thirty days after service. (Complaint, exh. A, at p. 1 [also reciting the tenancy is month-to-month].)

Taking all the Complaint’s allegations as true, however, it is indisputable that, at the time the notice of termination was served, the property was not exempt from the requirements of Civil Code, section 1946.2, because the lease did not yet include the written notice of the subdivision (e)(8) exemption. Thus, the notice of termination was required to set forth just cause for terminating the tenancy. (See Civ. Code, § 1946.2, subd. (a).) The notice of termination of tenancy on which the Complaint’s cause of action is based does not do so. (See Complaint, exh. A, at pp. 1–2.) Thus, in serving the notice without a statement of just cause, Carlotta failed to comply with a provision of Civil Code, section 1946.2. “An owner’s failure to comply with any provision of this section shall render the written termination notice void.” (Civ. Code, § 1946.2, subd. (g).) The notice of termination is therefore void.

Service of a valid notice to quit is an essential prerequisite and element of an unlawful detainer cause of action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611.) The notice must be in strict compliance with statutory requirements. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 394–395.) Because proper service of a valid notice is an element of the cause of action, defects in the notice and service thereof are subject to demurrer. (*Attenello v. Basilious* (2022) 88 Cal.App.5th Supp. 1, 7–8; see Code of Civ. Proc., § 1166, subd. (a)(5) [complaint must allege method of service].)

Because the Complaint does not allege proper service of a valid notice, it fails to state a cause of action for unlawful detainer. And because the notice of termination is void, there is no

manner in which the Complaint may be amended. Accordingly, once sufficient proof of proper notice is provided, the demurrer will be sustained without leave to amend.

The Opposition does not and cannot correct the defects cited above.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM